

Notice from the National Commission for Data Protection regarding
Bill No. 8305 concerning: 1° implementation of Regulation (EU)
2018/1862 of the European Parliament and of the Council of 28 November 2018
on the establishment, functioning, and use of the Schengen Information System (SIS) in the area of
police cooperation and judicial cooperation in criminal matters, amending and repealing Council
Decision 2007/533/JAI, and repealing Regulation (EC) No. 1986/2006 of the European Parliament and
of the Council and Commission Decision 2010/261/EU; 2° implementation of
Regulation (EU) 2022/1190 of the European Parliament and of the Council of 6 July 2022 amending
Regulation (EU) 2018/1862 regarding the introduction into the Schengen Information System (SIS) of
alerts for information concerning nationals of third countries in the interest of the Union; 3°
implementation of Article 20 of
Regulation (EU) 2019/818 of the European Parliament and of the Council of 20 May 2019 establishing
a framework for the interoperability of EU information systems in the area of police and judicial
cooperation, asylum, and immigration, and amending Regulations (EU) 2018/1726, (EU) 2018/1862,
and (EU) 2019/816; 4° implementation of Article 20 of Regulation (EU) 2019/817 of the European
Parliament and of the Council of 20 May 2019 establishing a framework for the interoperability of EU
information systems in the area of borders and visas and amending Regulations (EC) No. 767/2008,
(EU) 2016/399, (EU) 2017/2226, (EU) 2018/1240, (EU) 2018/1726, and (EU) 2018/1861 of the
European Parliament and of the Council and Decisions 2004/512/EC and 2008/633/JAI of the Council;
5° amendment of the Code of Criminal Procedure; 6° amendment of the Civil Code; 7° amendment of
the amended law of 29 August 2008 on the free movement of persons and immigration; 8° amendment
of the amended law of 18 December 2015 on international protection and temporary protection; 9°
amendment of the amended law of 5 July 2016 reorganizing the State Intelligence Service; 10°
amendment of the amended law of 18 July 2018 on the Grand Ducal Police
Deliberation No. 17/AV7/2024 of 15 March 2024

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regarding Bill No. 8305

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1.

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the
Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal
data and on the free movement of such data, and repealing Directive 95/46/EC (General Data
Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August
1, 2018, organizing the National Commission for Data Protection and the general regime on data
protection refers, the National Commission for Data Protection (hereinafter referred to as the "National
Commission" or "CNPD") "advises, in accordance with the law of the Member State, the national
parliament, the government, and other institutions and bodies regarding legislative and administrative
measures relating to the protection of the rights and freedoms of natural persons with regard to
processing."

Furthermore, in accordance with Article 8.3° of the aforementioned law of August 1, 2018, transposing
into national law Article 46.1.e) of Directive (EU) 2016/680 of the European Parliament and of the
Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal
data by competent authorities for the purposes of the prevention, investigation, detection, or
prosecution of criminal offenses, and the execution of criminal penalties, and on the free movement of
such data, and repealing Framework Decision 2008/977/JHA of the Council, the CNPD "advises the
Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and
administrative measures relating to the protection of the rights and freedoms of natural persons with
regard to the processing of personal data."

2.

Not having been directly seized by the Minister of Internal Security, the National Commission
nevertheless wishes to express its opinion on Bill No. 8305 concerning:

- 1° the implementation of Regulation (EU) 2018/1862 of the European Parliament and of the Council of November 28, 2018, on the establishment, functioning, and use of the Schengen Information System (SIS) in the field of police cooperation and judicial cooperation in criminal matters, amending and repealing Decision 2007/533/JHA of the Council, and repealing Regulation (EC) No. 1986/2006 of the European Parliament and of the Council and Decision 2010/261/EU of the Commission;
- 2° the implementation of Regulation (EU) 2022/1190 of the European Parliament and of the Council of July 6, 2022, amending Regulation (EU) 2018/1862 regarding the introduction into the Schengen Information System (SIS) of alerts for information concerning nationals of third countries in the interest of the Union;
- 3° the implementation of Article 20 of Regulation (EU) 2019/818 of the European Parliament and of the Council of May 20, 2019, establishing a framework for the interoperability of EU information systems in the field of police and judicial cooperation, asylum, and immigration, and amending Regulations (EU) 2018/1726, (EU) 2018/1862, and (EU) 2019/816;
- 4° the implementation of Article 20 of Regulation (EU) 2019/817 of the European Parliament and of the Council of May 20, 2019, establishing a framework for the interoperability of EU information systems in the field of borders and visas, and amending Regulations (EC) No. 767/2008, (EU) 2016/399, (EU) 2017/2226, (EU) 2018/1240, (EU) 2018/1726, and (EU) 2018/1861 of the European Parliament and of the Council and Decisions 2004/512/EC and 2008/633/JHA of the Council;
- 5° amendment of the Code of Criminal Procedure;
- 6° amendment of the Civil Code;
- 7° amendment of the amended law of August 29.

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2008 on the free movement of persons and immigration; 8th amendment of the amended law of December 18, 2015, relating to international protection and temporary protection; 9th amendment of the amended law of July 5, 2016, concerning the reorganization of the State Intelligence Service; 10th amendment of the amended law of July 18, 2018, on the Grand Ducal Police (hereinafter referred to as the "draft law").

3. The Schengen Information System (hereinafter referred to as the "SIS") is a large-scale European computer system facilitating the sharing of information between competent authorities of participating Member States. It compensates in particular for "the abolition of border controls and constitutes the most effective cooperation tool for the competent authorities in the areas of borders and immigration as well as for the police, customs, and judicial authorities of the EU and the countries associated with the Schengen area." As of December 31, 2022, the SIS contained 86,461,806 alerts. This large-scale computer system thus contains a vast amount of personal data.

4. The overhaul in which the draft law under review is situated is the second major reform of the system since its operation began in 1995. Indeed, the amended Regulation (EU) 2018/1862 of the European Parliament and of the Council of November 28, 2018, on the establishment, functioning, and use of the Schengen Information System (SIS) in the area of police cooperation and judicial cooperation in criminal matters, amending and repealing Council Decision 2007/533/JAI, and repealing Regulation (EC) No. 1986/2006 of the European Parliament and of the Council and Commission Decision 2010/261/EU (hereinafter referred to as the "SIS Regulation"), aims to modernize the functioning and use of the SIS.

5. According to the explanatory memorandum, the draft law aims to ensure the proper functioning of the new European framework of the SIS by introducing into Luxembourg legislation provisions specific to national functioning in the context of the SIS, including in the area of data protection.

6. It should also be noted that the SIS Regulation obliges the CNPD to conduct regular audits of data processing activities within the framework of the N.SIS, that is to say, the partial national copy of the SIS database, and to monitor the lawfulness of the processing of personal data in the SIS on

Luxembourg territory.

7. In this context, the CNPD wishes to share its observations regarding certain articles of the draft law and the SIS Regulation that present aspects related to the protection of personal data.

1 See the European Commission website regarding the SIS; https://home-affairs.ec.europa.eu/policies/schengen-borders-and-visa/schengen-information-system_en.

2 See the annual statistics on SIS from eu-LISA for 2022, p. 10; <https://data.europa.eu/euodp/en/data/storage/f/2023-03-13T071917/SIS%20II%202022%20statistics.pdf>.

3 See Article 59 of the SIS Regulation.

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8.

Finally, the impact sheet indicates that “[t]he text of the draft law was developed in consultation with the parties mentioned above” and that the CNPD is among the cited parties. However, it wishes to raise the point that although a form of consultation took place at the draft law stage, it was nonetheless unable to express its opinion on either the final version of the text or on the entirety of the text. It cannot be inferred from this consultation that the final text of the draft law was approved by the CNPD.

1.

Regarding Articles 2 and 3 of the draft law

9.

The CNPD questions whether the authors of the draft law anticipated the application of the text of the law in relation to data protection by considering the responsibilities of the various actors, and in particular the entity or entities assuming the roles of data controller(s) and processor(s) and, where applicable, joint data controller(s).

10.

The notion of data controller plays an important role as it determines who is responsible for the various rules regarding data protection as well as how the data subjects can exercise their rights. It should also be noted that the notion of joint data controller is a functional concept in that it aims to allocate responsibilities based on the actual roles played by the parties.

11.

The identity of the data controller(s) does not emerge from the text of the draft law in its current wording. Consequently, the National Commission is not in a position to assess the responsibilities regarding data protection. The CNPD considers it essential that the authors of the draft law identify this/these entity/entities. In this regard, it can only advise the authors of the draft law to establish a mapping of data flows.

12.

Considering the aforementioned elements, the CNPD notes that the SIS regulation provides for the designation of two authorities that play a central role in the processing of personal data within the SIS. On the one hand, the “N.SIS office” which is tasked with operating the national copy and assuming the central responsibility of the N.SIS in accordance with Article 7 of the SIS regulation. Thus, the N.SIS office must ensure compliance with the SIS regulation, which also includes provisions regarding data protection.

On the other hand, a “SIRENE” bureau which is tasked with introducing reports containing personal data into the SIS, coordinating the verification of the quality of the data to be introduced, and responding to requests for additional information.

4 See in this regard: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, p. 3., available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-gdpr_fr

5 Ibid., p. 4.

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13.

It should be noted that the SIRENE bureau introduces reports on behalf of the competent authorities listed in Article 5 of the draft law. These authorities therefore also play a role in data protection as they decide on the introduction of a report.

14.

It follows from Articles 2 and 3 of the draft law that the Grand Ducal Police assumes the role of the SIRENE bureau and the N.SIS office. These roles assigned by the SIS regulation are to be distinguished from the obligations and duties of the data controller arising from the applicable legal framework on data protection. Consequently, the CNPD questions whether the authors of the draft law have understood the articulation of roles, obligations, and duties between the SIRENE bureau, the N.SIS office, and the authorities that may request the introduction of a report.

15.

Furthermore, the CNPD questions the interpretation made by the authors of the draft law regarding the notion of "central responsibility" present in both Article 7.1 of the SIS regulation and Article 3.1 of the draft law. Does this central responsibility also encompass the responsibility concerning the compliance of processing in terms of data protection? It follows, for example, from Article 59.1 of the SIS regulation that "[a] reporting Member State is responsible for the accuracy and timeliness of the data in the SIS, as well as for the lawfulness of their introduction and retention in the SIS." The CNPD wonders which entity will be responsible for assuming this responsibility at the national level. If the N.SIS office is designated, how does it carry out this control in practice? The CNPD wishes to remind that, under the current state of the draft law, it is other authorities that decide on the appropriateness of introducing a report or not. In the event that the N.SIS office questions the lawfulness of a report, how could it compel a competent authority to review its decision? The question indeed arises regarding the actual effective control that the agents of the SIRENE bureau and the N.SIS office will be able to exercise over the authorities designated in Articles 4 and 5 of the draft law. The hierarchical and operational relationship between these actors leaves doubts about the real possibility, for example, of these agents to ensure that the judicial administration's reports potentially do not comply with the regulations.

16.

Moreover, the CNPD recalls that, in accordance with the SIS regulation, each Member State must designate one or more SIRENE bureaus which, based on Article 7.2 of the said regulation, "coordinate the verification of the quality of the information entered into the SIS." The SIRENE bureau must therefore work in close collaboration with the N.SIS office which, as explained above, potentially assumes responsibility for the quality of the information. In this regard, if the drafters of the draft law intend to maintain these two designations within the Grand Ducal Police, it will be imperative to establish a governance framework, so that the agents in charge of these missions clearly distinguish their missions related to their "N.SIS office" and "SIRENE bureau" frameworks.

17.

Furthermore, the SIRENE bureau must, in accordance with Article 7.2 paragraph 2 of the SIS regulation, have access to national files. Indeed, this provision stipulates that "[e]ach SIRENE bureau has, in compliance with national law, easy direct or indirect access to...

all relevant national information, including national databases and all information regarding reports from its Member State, as well as expert opinions, in order to be able to respond to requests for additional information quickly and within the deadlines set out in Article 8." The CNPD therefore wonders how this direct or indirect access is provided for in Luxembourg, considering that the draft law remains silent on this matter.

18. Finally, the National Commission aligns itself with the observations contained in the opinion of the State Council regarding Article 2.3 of the draft law, a provision on which the latter has formally

opposed. Indeed, according to the understanding of the CNPD, it would be necessary to list the competent authority or authorities that can submit reports in parallel with the SIRENE office. The CNPD also questions whether it should not clarify which reports this or these authorities can submit to the SIS. In light of the previous developments, these clarifications seem essential to determine the respective roles and responsibilities regarding data protection.

II. Regarding Article 9 of the draft law

19. Regarding the wording of Article 9.1 of the draft law, which aims to specify the condition under which fingerprint data can be verified and the identity of the person established, the authors have made a reference to Article 40 of the SIS Regulation. This article specifies that "[t]hese fingerprint data consist of complete or incomplete sets of fingerprints or palm prints found at the scenes of terrorist offenses or other serious offenses under investigation." The draft law remains silent on the definition of what constitutes a "serious offense." Such a definition, or at least a delineation, between "minor offenses" and "serious offenses" seems essential in the context of this draft law, given that it is a determining criterion for the introduction of a report into the SIS. The CNPD wonders whether the definition retained in the framework of Regulation (EU) 2018/1240 of the European Parliament and of the Council of September 12, 2018, establishing a European Travel Information and Authorization System (ETIAS) and amending Regulations (EU) 1077/2011, (EU) 515/2014, (EU) 2016/399, (EU) 2016/1624, and (EU) 2017/2226 could not serve as inspiration. Indeed, Article 3.1, point 16 of this regulation defines a serious criminal offense as "an offense that corresponds to or is equivalent to one of the offenses referred to in Article 2, paragraph 2, of Framework Decision 2002/584/JHA, if it is punishable under national law by a penalty or a measure of deprivation of liberty of a maximum duration of at least three years."

20. On the other hand, the National Commission wishes to express its utmost concern regarding the interpretation that can be made of Article 40 of the SIS Regulation, in that it states: "These data are only entered into the SIS if it can be established with a very high degree of probability that they belong to the perpetrator of the offense." Indeed, the use of the wording "with a very high degree of probability" implies, in a respectful society...

of privacy, an a priori analysis based on rigorous evaluation criteria set by law. Without a strict and precise legal framework, the CNPD fears that all data will be systematically integrated into the SIS.

21. The National Commission wishes to emphasize in this context that Article 8 of the European Convention on Human Rights guarantees the right to respect for private and family life. Furthermore, Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (hereinafter the "Charter") grant every person the right to respect for their private and family life, as well as the right to the protection of personal data concerning them. Nevertheless, these fundamental rights are not absolute prerogatives, as the possibility of interference or limitation is provided for both by Article 8.2 of the European Convention on Human Rights and by Article 52.1 of the Charter. It is in this context that adherence to the principles of proportionality and necessity is essential, as this interference or limitation can only be justified provided that it is, among other things, prescribed by a law accessible to the persons concerned and predictable in its repercussions, that is to say, formulated with sufficient precision.

22. It is therefore appropriate to question whether the absence of criteria in the law would not contradict the provisions of the Charter and the European Convention on Human Rights. Indeed, the criterion of predictability and accessibility of the aforementioned law protects, in particular, the persons concerned against arbitrariness. If the law provides the criteria on the basis of which personal data can be introduced into the SIS in the context of a report pursuant to Article 40 of the SIS Regulation, the competent authorities cannot randomly decide to resort to this type of reporting.

23. It should be emphasized that the fingerprint data referred to in Article 40 of the SIS Regulation are data belonging to special categories of personal data within the meaning of the GDPR and the law of August 1, 2018, relating to the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security, and which are subject to a stricter

processing regime. Indeed, Article 9 of the law of August 1, 2018, relating to the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security, allows the processing of such categories of data "only in cases of absolute necessity, subject to appropriate safeguards for the rights and freedoms of the data subject."

24. Furthermore, the CNPD questions the wording chosen by the authors of the draft law regarding the drafting of Article 9.2 "any processing of data under Article 40 of the SIS Regulation."

7 The other conditions are that the interference must be necessary in a democratic society, subject to the principle of proportionality, respect the essential content of the right to data protection, and effectively meet objectives of general interest or the need to protect the rights and freedoms of others. For a more detailed analysis of these conditions, see deliberation No. 2/2021 of February 4, 2021, of the National Commission for Data Protection, doc. pari. No. 7425/09, point 1.1.b).

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Regulation (EU) 2018/1862 other than insertion, consultation, or comparison must be subject to authorization from the competent judicial authorities." While the CNPD is able to grasp the scope of the terms "insertion" and "consultation," it remains doubtful regarding the use of "comparison" and "any processing" and wonders what data processing is actually targeted by this provision. Under these circumstances, the CNPD questions whether the article should be further clarified to ensure greater security of the fundamental freedoms of the individuals concerned by focusing on more precisely defining the framework within which their data is processed.

III.

Concerning Article 10 of the draft law

25.

Insofar as Article 10 of the draft law provides provisions relating to the applicable data protection regime, it must be read in conjunction with Articles 66 and 67 of the SIS Regulation.

26.

Article 66 of the SIS Regulation determines the applicable data protection regimes. Thus, this article states that Directive (EU) 2016/680 is applicable to the processing of personal data carried out within the framework of the SIS and for the purposes of preventing and detecting criminal offenses, investigations and prosecutions in this regard, or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats by the competent authorities. The CNPD wishes to point out that, according to its understanding, Article 66 should be interpreted as defining an applicable regime based on the purpose of the data processing. Indeed, Article 66.2 specifies that "[t]he directive (EU) 2016/680 applies to the processing of personal data carried out, under this regulation, by the competent national authorities and services for the purposes of preventing and detecting criminal offenses, investigations and prosecutions in this regard, or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats." This wording "by the competent national authorities and services" should be understood as referring to the competent national authorities and services within the framework of the SIS Regulation. Thus, all authorities operating under the SIS would apply the regime provided by Directive (EU) 2016/680 as long as they act within the framework of the SIS and for the purpose of preventing and detecting criminal offenses, investigations and prosecutions in this regard, or the enforcement of criminal sanctions, including protection against threats to public security and the prevention of such threats.

27.

Personal data processing carried out for other purposes (for example: for an administrative purpose) falls under the regime of the GDPR. European agencies, namely eu-LISA, Frontex, and Europol, must apply their respective European regime.

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28.

Article 67 of the SIS Regulation provides specific provisions regarding the rights of access, rectification, and erasure of the data subjects. This article should be viewed as a *lex specialis* in relation to the general regimes mentioned in Article 66 of the SIS Regulation. To the extent that Article 66 of the SIS Regulation determines the applicable regimes, the CNPD questions the necessity of paragraphs 1 and 2, first subparagraph, of Article 10 of the draft law. Would it not be sufficient to simply specify that the data protection regime referred to in Article 66.2 of the SIS Regulation is implemented at the national level by the law of August 1, 2018, concerning the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security?

In any case, Article 10.1 and 2 in its current wording seems contrary to the SIS Regulation in that it subjects all processing carried out in the context of SIS to Directive (EU) 2016/680, with the sole exception of processing carried out by administrative authorities for administrative purposes. However, according to the understanding of the CNPD, the regulation distinguishes the applicable regimes for processing carried out in the context of SIS based on the purpose pursued, as described in points 26 and 27 of this opinion. A national provision that would have the effect of modifying the applicable regimes would be contrary to European Union law.

29.

Furthermore, Article 10.2 in its second subparagraph states, in accordance with Articles 66 and 67 of the SIS Regulation, that it is possible for national administrative authorities to fully or partially limit the right of access, as provided for in Article 15 of the GDPR, of the data subject.

30.

Nevertheless, the National Commission would like to draw the attention of the drafters of the draft law to Article 67 of the SIS Regulation, which specifies that such a limitation can only be made "in accordance with national law, as long as and to the extent that a partial or complete limitation of this nature constitutes a necessary and proportionate measure in a democratic society, taking due account of the fundamental rights and legitimate interests of the data subject [...]." The CNPD therefore considers that, in accordance with the principle of law predictability required by both Article 52 of the Charter and Article 8.2 of the European Convention on Human Rights, the law should establish the criteria and conditions allowing national authorities to decide on the limitation. Indeed, it could be considered to limit rights, for example, based on the source of the data or the type of reporting. In the absence of a national provision taken in accordance with the guarantees required by Article 67 of the SIS Regulation, the CNPD wonders whether the proposed legal framework is compliant with Union law.

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IV.

Concerning Article 11 of the Draft Law

31.

The proposed amendments regarding Article 45 of the Code of Criminal Procedure are, according to the CNPD, likely to be disproportionate. The removal of paragraph 2 of subsection 6, which limited the collection of sensitive personal data for specific purposes, deprives the individuals concerned of the security they have regarding their private lives. Without a framework or an exhaustive list, and in light of the addition of the new paragraph 5 stating that "[p]ersonal data thus collected may be compared with the information contained in the personal data processing available to the Grand Ducal Police in

the exercise of its missions,” the CNPD is concerned that systematic collections may be carried out or, if occasional, based on subjective criteria. In this regard, the CNPD aligns itself with the conclusions of the Council of State and recommends the annulment of the removal of the aforementioned paragraph.
32.

Regarding the removal and replacement of paragraph 8 of Article 45 of the Code of Criminal Procedure with the following paragraph: “(8) The identification report and all related documents may be retained for a maximum period of six months. The fingerprints and photographs collected under this article may be processed later by the police for the purposes of prevention, investigation, and detection of criminal offenses if the controlled person is subject to a judicial investigation or enforcement measure within this period. The retention periods are those applicable to other personal data collected in the context of these procedures,” the CNPD believes that the last sentence creates uncertainty regarding the retention period to be applied. The National Commission therefore recommends that the authors of the draft law adopt a formulation that would allow, in accordance with the principle of legal predictability required by both Article 52 of the Charter and Article 8.2 of the European Convention on Human Rights, a clearer understanding of this provision and thus reduce the legal uncertainty that this provision may generate.

33.

Furthermore, even though the CNPD understands the underlying logic regarding the retention of personal data of individuals unknown to the police services, the National Commission is, however, unable to assess the duration of 6 months retained by the authors of the draft law as it is not justified. Consequently, it recalls that the retention period must be adapted to the purposes pursued and must be adequate and proportionate to the functioning of a democratic society.

34.

The CNPD further notes that Article 11 of the draft law aims to implement, according to the commentary on the articles, Articles 20 paragraphs 1, 2, 4, and 6 of Regulation (EU) 2019/818 of the European Parliament and of the Council of May 20, 2019, establishing a framework for the interoperability of EU information systems in the area of police and judicial cooperation, asylum, and immigration. It must be noted that Article 11, in its current wording, does not expressly refer to paragraphs 4 and 6 of the said regulation. Consequently, the CNPD does not understand how these provisions can apply.

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35.

On the other hand, the authors of the draft law, in their commentary on Article 11, argue that “[e]ven though these events [natural disaster or accident] do not necessarily fall within the criminal domain, in practice the circumstances of these events are often not sufficient to exclude criminal offenses or to identify the perpetrators and victims, so that the judicial authorities are seized of the matter in all these cases. Thus, Article 45 of the Code of Criminal Procedure applies, while the person concerned is unable to prove their identity or to cooperate.” The CNPD questions the appropriateness of referring to Article 45 of the Code of Criminal Procedure. According to its understanding, this article can only apply in very specific cases during a criminal investigation. Paragraph 1 of Article 45 of the Code of Criminal Procedure, which is not subject to modification by the authors of the draft law, precisely delineates the situations in which it is applicable. The authors of the draft law having not referred to Regulation 2019/818 of the European Parliament and of the Council of May 20, 2019, establishing a framework for the interoperability of EU information systems in the area of police and judicial cooperation, asylum, and immigration, and having not consequently amended Article 45 of the Code of Criminal Procedure, the CNPD remains skeptical about this interpretation made by the authors and questions the appropriateness of incorporating these means of action concerning natural disasters and accidents within the law of July 18, 2018, on the Grand Ducal Police.

36.

The CNPD wishes to clarify that the implementation of Articles 20 paragraphs 4 and 6 of Regulation

2019/818 of the European Parliament and of the Council of May 20, 2019, establishing a framework for the interoperability of EU information systems in the area of police and judicial cooperation, asylum, and immigration requires particular attention, as it is the responsibility of national law to adopt the procedures, conditions, and criteria under which it is possible to query the CIR (i.e., the common identity data repository established by Article 17, paragraph 1, of Regulation (EU) 2019/818).

V.

Concerning Article 16 of the draft law

37.

In the same manner, the draft law provides for an amendment to Article 5 of the amended law of July 18, 2018, on the Grand Ducal Police in its paragraph 7 and states: "The retention periods are those applicable to personal data in the Police files provided for in Articles 43quater and 43quinquies."

38.

The CNPD also advises the authors of the draft law to adopt a formulation that would allow, in accordance with the principle of legal predictability required by both Article 52 of the Charter and Article 8.2 of the European Convention on Human Rights, to clearly indicate the retention period in order to avoid any form of legal uncertainty and to ensure better readability for the citizen. Furthermore, the CNPD is not in a position to assess the appropriateness of such retention periods since they are not justified.

The CNPD observes, on the other hand, that the commentary on Article 16 specifies that the modifications to said article "are the corollary of the modifications made to Article 45 of the CPP in the context of the implementation of Article 20 of Regulations (EU) 2019/818 and (EU) 2019/817 relating to the interoperability of European databases." The National Commission can only note the absence of transcription, in Article 16, of paragraphs 4 and 6 of said regulation. The CNPD therefore draws the authors of the draft law's attention to the fact that the commentary on the articles does not reflect the current wording of the draft law.

VI.

Concerning Article 56 and Article 73 of the SIS Regulation

39.

Article 56 of the SIS Regulation specifically targets the purposes for which the data may be used. It specifies that any use of this data for purposes other than those provided for by the regulation constitutes an abusive use and, under national law, gives rise to sanctions based on Article 73 of the same regulation. Article 73 states that national law must provide for effective, proportionate, and dissuasive sanctions. The CNPD can only note the absence of such sanctions provided for by national law or, at the very least, by the draft law. Therefore, the National Commission strongly encourages the authors of the draft law to provide for these sanctions.

40.

Furthermore, Article 56.8 specifies "[a]s long as Union law does not provide for specific provisions, the law of each Member State applies to the data in its N. SIS." The CNPD suggests that the authors of the draft law detail the applicable regime in such a situation.

VII.

Concerning Article 64 of the SIS Regulation

Article 64.3 of the SIS Regulation provides that "[t]he period during which the data may be retained in these files is governed by national law." The CNPD questions whether these periods are provided for by national law. In the event that this period is not provided for, the CNPD can only encourage the authors of the draft law to implement this provision of the regulation.

Thus adopted in Belvaux on March 15, 2024.

The National Commission for Data Protection

Tine A. Larsen

President

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